

# **MASTER SERVICES AGREEMENT**

between NimbusPay ("Vendor") and Customer Corp. ("Customer")  
Effective Date: June 1, 2024

## **1. TERM**

### **1.1 [Reserved]**

## **2. INITIAL TERM**

**2.1 This Agreement has an initial term of thirty-six (36) months and shall not automatically renew; renewal requires a signed written amendment.**

## **3. SERVICES**

**3.1 Vendor shall process Customer's payroll through the Nimbus payroll platform, including tax withholding, filing, and direct deposit.**

## **4. CUSTOMER OBLIGATIONS**

**4.1 Customer shall maintain accurate employee headcount records within the Nimbus platform.**

## **5. FEES AND PAYMENT**

**5.1 Customer shall pay \$8.00 per active employee per month, processed through the Nimbus payroll platform.**

**5.2 In addition to per-employee fees, Customer shall pay a platform base fee of \$300.00 per month.**

**5.3 Invoices are issued monthly and due within thirty (30) days.**

**5.4 Mid-cycle employee count changes shall be prorated daily.**

## **6. COMPLIANCE**

**6.1 Vendor shall remain current on all applicable federal and state payroll tax filing requirements on Customer's behalf.**

## **7. LIMITATION OF LIABILITY**

**7.1 Neither party's aggregate liability under this Agreement shall exceed the fees paid by Customer in the twelve (12) months preceding the claim.**

## **8. GOVERNING LAW**

**8.1 This Agreement is governed by the laws of the State of Texas.**